



CHAPTER 21.

An Act to amend the law relating to electoral registration and to voting at parliamentary and local government elections; to make provision with respect to jurors books; to amend the law relating to returning officers for Scottish constituencies; and to provide for matters connected with the purposes aforesaid.

[20th December 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Temporary provisions as to Electoral Registration.

1.—(1) Notwithstanding anything in the Act of 1943 or in the Act of 1945, the register of electors to be in force for a parliamentary election which—

(a) is initiated on or after the first day of January, nineteen hundred and forty-six; and

(b) is an election at which the time fixed for nomination falls before the coming into force of a new register prepared under section eleven of the Act of 1918;

shall, subject to the provisions of this Act, be the register which, at the time fixed for nomination at the election, is the annual register last published in accordance with the Act of 1945.

Annual register to be used for all parliamentary elections until registers are in force under 7 & 8 Geo. 5. c. 64.

(2) No register shall be specially prepared for any such parliamentary election in accordance with the Acts of 1943 and 1945.

(3) The enactments specified in the First Schedule to this Act shall cease to have effect to the extent specified in the third column of that Schedule.

Continuance
of section
one of
7 & 8 Geo. 6.
c. 24.

2. Section one of the Act of 1944 (which amends the Act of 1943 in relation to the qualifications for inclusion in electoral registers) shall remain in force until the end of December, nineteen hundred and forty-six, and shall then expire unless the expiry thereof is postponed in accordance with the provisions of subsection (2) of that section; and accordingly the said subsection (2) shall have effect as if for the reference therein to the thirty-first day of December, nineteen hundred and forty-five there were substituted a reference to the thirty-first day of December, nineteen hundred and forty-six.

Supplemen-
tary register.

3.—(1) Immediately after the end of December, nineteen hundred and forty-five, the registration officer for each constituency shall, in accordance with electoral registration regulations, prepare for the constituency a register to be known as “the supplementary register”.

(2) A person shall be registered as a service voter in the supplementary register for a constituency if—

- (a) the registration officer has, between the end of June, nineteen hundred and forty-five, and the end of December in that year, received in respect of that person a service declaration or a war worker's declaration, and, in either case, the declaration has been transmitted to the registration officer in accordance with the provisions contained in that behalf in national registration regulations;
- (b) the declaration has not been cancelled before the end of December, nineteen hundred and forty-five; and
- (c) the said person would have been entitled by virtue of the declaration to be registered in the service register comprised in the annual register for the constituency if the registration officer had received the declaration before the end of June, nineteen hundred and forty-five.

Where a service declaration or a war worker's declaration appears to have been duly made signed and attested, and it appears from the declaration that the person to whom it relates has attained or will attain the age of twenty-one years before the first day of January, nineteen hundred and forty-six, the said person shall be deemed for the purposes of this subsection to have been of full age on the thirtieth day of June, nineteen hundred and forty-five.

(3) A person shall be registered as a civilian voter in the supplementary register for a constituency if it appears to the registration officer—

- (a) that the said person ceased to be a member of the forces or a seaman between the end of June, nineteen hundred and forty-five, and the end of December in that year;

- (b) that, upon so ceasing, he became registered in the National Register as residing at a place in the constituency; and
 - (c) that, upon so ceasing, he was a British subject of full age and not subject to any legal incapacity.
- (4) The registration officer for each constituency shall, so far as is reasonably practicable, secure—
- (a) that no person is registered more than once in the supplementary register for the constituency; and
 - (b) that, notwithstanding anything in the preceding provisions of this section, a person is not registered in the supplementary register for the constituency if he is registered, in respect of an address in the constituency, in the civilian residence register or the service register comprised in the annual register published in the year nineteen hundred and forty-five.
- (5) The supplementary register for each constituency shall be published on the twenty-eighth day of February, nineteen hundred and forty-six.

4.—(1) The supplementary register for each constituency shall, in addition to the annual register, be in force for the purposes of any parliamentary election for the constituency initiated on or after the first day of March, nineteen hundred and forty-six, being an election at which the time fixed for nomination is not later than the fourteenth day of October in that year.

Right of
person
registered in
supplementary
register to
vote.

(2) Every supplementary register shall, during the period beginning with the said first day of March and ending with the said fourteenth day of October, be in force, in addition to the annual register, as a register of local government electors; and while a supplementary register is in force as a register of local government electors a person registered therein shall, notwithstanding anything in any enactment, be deemed to be registered as a local government elector for any local government electoral area within which the place of residence by reference to which he is so registered is situated, and the provisions of subsection (2) of section eight of the Act of 1918, so far as they relate to the right of a person registered as a local government elector to vote, shall have effect accordingly.

(3) A person registered as a service voter in the supplementary register shall have the same rights of voting by post and by proxy at any election for which the supplementary register is in force as if that register were a service register in force for that election, and the provisions of the Acts of

1943 and 1945 relating to voting by post and by proxy shall have effect accordingly.

Ancillary
provisions
as to
supplementary
register.

5.—(1) Section twenty of the Act of 1945 (which provides for extending the time for registering prisoners of war) shall have effect with respect to supplementary registers as if a supplementary register were a service register for which the qualifying date were the first day of January, nineteen hundred and forty-six.

(2) For the purpose of determining whether a person is to be registered as a civilian voter in the supplementary register for any constituency:—

- (a) a person shall be deemed to have ceased to be a member of the forces or a seaman between the end of June, nineteen hundred and forty-five, and the end of December in that year if, and only if, it appears from the particulars entered with respect to him in the National Register that he so ceased;
- (b) information furnished to a registration officer in accordance with national registration regulations made under subsection (3) of section five of the Act of 1943 shall be conclusive evidence as to what particulars are, and what particulars are not, entered in the National Register with respect to any person; and
- (c) a person shall be deemed, unless the registration officer is satisfied that the contrary is the case, to have been at the material time a British subject of full age and not subject to any legal incapacity.

(3) The notification to a registration officer, in accordance with the provisions contained in that behalf in national registration regulations, that a service declaration or a war worker's declaration has been cancelled shall, for the purposes of determining the right of any person to be included in the supplementary register, be conclusive evidence of the fact so notified.

(4) For the purposes of the Act of 1918, the Act of 1943, and this Act, a person registered in the supplementary register shall be deemed to be registered in respect of a residence qualification.

Temporary Provisions as to Voting by Post and by Proxy.

Extension of
facilities for
voting as a
civilian absent
voter.

6.—(1) If any person registered in a civilian residence register as a parliamentary elector for any constituency satisfies the registration officer, on an application made within the period and in the manner prescribed by electoral registration regulations, that he no longer resides at the address in

respect of which he is so registered, or at any other address within the same area, the registration officer shall enter the name of that person in the absent voters list for the purposes of every parliamentary election for which that register is used.

(2) If any person registered in a civilian residence register as a parliamentary elector for any constituency satisfies the registration officer on an application made within the period and in the manner prescribed by electoral registration regulations that he will probably be unable, without making a journey by sea or air, to proceed from the address in respect of which he is registered in that register to a polling place in order to vote in person at any parliamentary election for which that register will be used, the registration officer shall enter the name of that person in the absent voters list for the purposes of every parliamentary election for which that register is used.

(3) If any person registered in a civilian residence register as a parliamentary elector for any constituency satisfies the registration officer, on an application made within the period and in the manner prescribed by electoral registration regulations, and by such evidence as may be so prescribed, either—

(a) that he is so incapacitated physically either by blindness or otherwise that he will probably be unable to vote in person at any parliamentary election for which that register will be used; or

(b) that he is so incapacitated physically, either by blindness or otherwise, that he will probably be unable, without such assistance as is provided for by the rules for elections set out in Part I to the First Schedule to the Ballot Act, 1872, to vote in person at ^{35 & 36 Viet.} any parliamentary election for which that register ^{c. 33.} will be used;

the registration officer shall enter the name of that person in the absent voters list for the purposes of every parliamentary election for which that register is used.

(4) Where a person is registered as a civilian voter in the supplementary register for any constituency, the provisions of this section shall have effect in relation to him as if that register were a civilian residence register.

(5) The provisions of section twenty-three of the Act of 1918 (which enable persons placed on the absent voters list under that Act to vote by post or by proxy) shall apply to persons placed on the absent voters list under this section subject to modifications specified in the Second Schedule to this Act.

(6) In sub-paragraphs (a) and (b) of paragraph 1 of the First Schedule to the Act of 1943, any reference to an application by any person for his name to be entered in the absent voters list shall be construed as excluding a reference to an application made under this section.

(7) Nothing in this section shall confer upon any person a right to vote by post or by proxy at any election initiated before the first day of March, nineteen hundred and forty-six.

Extension
of right of
service voter's
proxy to vote
by post.

7.—(1) Where a person is entitled to vote as proxy for a service voter at a parliamentary election for any constituency initiated on or after the first day of March, nineteen hundred and forty-six, but is not entitled to vote by post as an absent voter in his own right at that election, then, if his name is for the time being entered on the list of postal proxy voters kept for the constituency under this section, he may, in the exercise of his right to vote at the election as proxy for the service voter, vote by post in the same way as an absent voter.

(2) The registration officer for each constituency shall, in accordance with electoral registration regulations, keep a list of postal proxy voters for the purposes of this section, and a person's name shall be entered in that list if—

- (a) he has made an application to the registration officer in that behalf in accordance with electoral registration regulations;
- (b) at the time when the application is received by the registration officer, a person is entered on the record of proxies as having been appointed proxy by the service voter in question, and the registration officer is satisfied from the application of the identity of the applicant with the person so appointed;
- (c) the application names an address in the United Kingdom to which a ballot paper is to be sent to the applicant for the purpose of enabling him to vote by post in pursuance of the application; and
- (d) that address is not within the same area as the address entered on the service register or, as the case may be, on the supplementary register as the address of the service voter in question.

(3) A person's name shall be removed from the list of postal proxy voters kept for a constituency under this section if he makes application in that behalf to the registration officer in accordance with electoral registration regulations:

Provided that if any such application is made after the returning officer has sent a ballot paper to the applicant for the purpose of enabling him to vote by post at any election

in pursuance of this section, his name shall not be removed from the list for the purposes of that election.

(4) Each person whose name is entered in the list of postal proxy voters shall be distinguished in that list by a number, and in relation to any occasion on which a ballot paper is sent to him by reason of his being entered in the list, that number shall be his number for the purposes of section two of, and rule 24 in Part I of the First Schedule to, the Ballot Act, 1872.

(5) When the name of any person is entered in the list of postal proxy voters in pursuance of an application made under this section, the registration officer shall record the address named in the application as the address to which a ballot paper is to be sent to the applicant, and, while the name of the applicant remains in the list in pursuance of that application, the address so recorded shall be the address to which a ballot paper is sent by the returning officer for the purpose of enabling him to vote under this section.

(6) If at any election a person is entitled under this section to vote by post as proxy for a service voter, he shall not, at that election, be entitled to vote otherwise than by post as proxy for that voter.

8. Part IV of the Act of 1945, so far as it relates to voting by post at parliamentary elections, shall, notwithstanding anything in section thirty-two of that Act, apply to general elections initiated during the period beginning with the passing of this Act and ending with the thirty-first day of December, nineteen hundred and forty-six or with such later date as may be prescribed by electoral registration regulations; and subsection (1) of the said section thirty-two shall cease to have effect.

Extension of operation of certain temporary provisions as to voting by post.

Temporary Provisions as to Jurors Books.

9.—(1) A jurors book shall be prepared for each county, in accordance with the provisions hereinafter contained, for the year beginning with the first day of January, nineteen hundred and forty-seven, and for each subsequent year beginning with the first day of January:

Temporary provisions as to jurors books.

Provided that jurors books shall not be prepared under this Act for any year if, in the preceding year, a register of electors is prepared under section eleven of the Act of 1918.

(2) Notwithstanding anything in the Juries Act, 1922, or in any other enactment, the jurors book prepared for a county for the year beginning with the first day of January, nineteen hundred and forty shall be the jurors book for that county until the end of the year nineteen hundred and forty-six.

12 & 13 Geo. 5. c. 12.

For the purposes of this subsection, the expression "county" includes the county of the City of London.

(3) No jurors book shall be prepared for any county under the Juries Act, 1922, in any year in which no register of electors is prepared under section eleven of the Act of 1918; nor shall any person, during any such year, be required to perform any duty which is imposed solely with a view to the preparation of a jurors book under the Juries Act, 1922, for the year beginning with the first day of January next following.

(4) No jurors book shall be prepared for the county of the City of London in the year nineteen hundred and forty-five, nor shall any person, during that year, be required to perform any duty which is imposed solely with a view to the preparation of a jurors book for that county.

(5) Subsections (4) and (5) of section nineteen of the Act of 1943 shall cease to have effect.

Procedure for
preparing
jurors books
under this
Act.

10.—(1) The jurors books to be prepared under this Act for any year shall be prepared by reference to the lists published in the preceding year, in accordance with paragraph (b) of subsection (2) of section twenty-one of the Act of 1945, of persons who appear to registration officers to be qualified to be registered in the civilian residence register.

The said lists are hereinafter referred to as "electors lists."

(2) The Secretary of State shall make provision by regulations (hereinafter referred to as "jurors books regulations") with respect to the procedure to be followed in preparing jurors books under this Act; and such regulations shall in particular provide—

- (a) for requiring each registration officer, as soon as he has published electors lists, to supply copies of those lists to the rating authority for every county borough, county district and metropolitan borough which is wholly or partly included in his area;
- (b) for requiring each rating authority to mark in those lists in the prescribed manner the names of such of the persons included in the lists as appear to the rating authority to be qualified and liable to serve as jurors, and the names of such of the persons so qualified and liable as appear to the authority to be qualified to serve as special jurors;
- (c) for requiring each rating authority, after so marking the names as aforesaid, to return the lists to the registration officer before the fifteenth day of October

next following the publication of the lists, or before such earlier date as may be prescribed; and

- (d) for requiring the clerk of the council of every county to prepare jurors books from the lists so returned to registration officers, and for enabling any such clerk to obtain from registration officers such information as he may require for that purpose.

11.—(1) Where the name of any person has, in accordance with jurors books regulations, been marked in an electors list, and he claims that by reason of some disqualification or exemption his name ought not to be so marked, he may, within the period and in the manner prescribed by such regulations, apply to the registration officer to have the mark placed against his name removed. Appeals, etc.

(2) The registration officer shall, as soon as may be, take every such application into consideration and shall, in the prescribed manner, notify to the applicant his decision thereon; and the provisions of subsection (5) of section one of the Juries Act, 1922 (which relate to appeals from the decisions of registration officers) shall have effect as if an application made under this section were an application made under subsection (4) of that section:

Provided that in relation to any application made under this section the references in the said subsection (5) to the prescribed time shall be construed as references to such time as may be prescribed by jurors books regulations.

(3) Without prejudice to the provisions of the said subsection (5), jurors books regulations shall provide for the making, in electors lists and in jurors books prepared under this Act, of such corrections as may be necessary for the purpose of giving effect to the decisions of registration officers upon applications under this section, and of courts of summary jurisdiction upon appeals arising out of such applications.

(4) On the first occasion on which the name of any person is, in accordance with jurors books regulations, marked in any electors list in respect of a particular address, the registration officer shall take such steps as may be prescribed for the purpose of informing that person that his name has been so marked, and for the purpose of informing him of his rights under this section.

12.—(1) Jurors books regulations shall provide—

- (a) for securing that where, upon a claim made in pursuance of paragraph (c) of subsection (2) of section twenty-one of the Act of 1945, or upon an appeal arising out of any such claim, a person establishes Supplementary provisions as to jurors books.

his right to be included in a civilian residence register, his name shall, if he is qualified and liable to serve as a juror, be included in the appropriate jurors book prepared under this Act, and for adapting the provisions of the last preceding section in relation to any person whose name it is proposed to include in a jurors book in pursuance of the requirements of this paragraph; and

- (b) for securing that where, upon any objection made in pursuance of the said paragraph (c), or upon an appeal arising out of any such objection, it is decided that a person ought not to be included in a civilian residence register, the name of that person shall not be included in the jurors book prepared by reference to the electors lists for that register.

(2) Subsection (6) of section one of the Juries Act, 1922 (which protects persons who have been wrongly marked as jurors from being marked as jurors in subsequent years without notice), and subsection (II) of that section (which imposes penalties upon officers who fail to perform their duties under that section), shall have effect with respect to the preparation of jurors books under this Act as they have effect with respect to the preparation of jurors books under that Act, subject to the following modifications, that is to say—

- (a) any reference to electors lists shall be construed as including a reference to any list or other documents which are required to be supplied by a registration officer to a rating authority under jurors books regulations; and

- (b) any reference to the said section one shall be construed as a reference to jurors books regulations.

(3) Except where the context otherwise requires, references to jurors books in any enactment or in any instrument having effect by virtue of any enactment shall be construed as including references to jurors books prepared under this Act.

(4) For the purposes of the provisions of this Act relating to jurors books—

- (a) the expression “county” means any place which is a separate county for the purposes of the Juries Act, 1922, and does not, except where the contrary is expressly provided, include the county of the City of London;
- (b) the expression “clerk of the council” has the meaning assigned to the expression “clerk of the county council” by section seven of that Act; and
- (c) the expression “rating authority”, in relation to a metropolitan borough, means the council of the borough acting in their capacity as overseers.

(5) In subsection (4) of section two of the Local Elections 2 & 3 Geo. 6. and Register of Electors (Temporary Provisions) Act, 1939, ^{c. 115.} and in subsection (4) of section nineteen of the Act of 1943, the expression "county" shall be deemed always to have meant any place which is a separate county for the purposes of the Juries Act, 1922, and to have included the county of the City of London.

Returning Officers for Scottish Constituencies

13. Paragraph (13) of section forty-three of the Act of 1918, in so far as it directs that the returning officer for a Scottish constituency situated in more than one sheriffdom shall be the sheriff specified in the Seventh Schedule to the said Act, shall cease to have effect, and the returning officer for any such constituency shall be the sheriff of such one of the sheriffdoms in which the constituency is situated as the Secretary of State may by order direct; and accordingly in the said paragraph for the words "specified in the Seventh Schedule to this Act" there shall be substituted the words "of such one of those sheriffdoms as the Secretary of State may by order direct" and for the words from "within which" where secondly occurring to "this Act" there shall be substituted the words "the sheriff of which is returning officer for the constituency."

Returning officers for Scottish constituencies situated in more than one sheriffdom.

Consequential and Supplementary Provisions.

14.—(1) A person shall not vote at a general election for more than one constituency for which he is registered in respect of a residence qualification.

Prohibition of voting twice at a general election in respect of residence qualifications.

(2) Subsection (1) of section twenty-two of the Act of 1918 (which imposes a penalty upon any person who, at a general election, votes for more constituencies than he is entitled to vote for in accordance with that Act) shall have effect as if the reference therein to that Act included a reference to this section.

15.—(1) Section thirteen of the Act of 1943 (which relates to registration officers, their areas and duties, and provides for the discharge of certain duties of registration officers by the proper officers of certain local authorities) shall have effect for the purposes of this Act as if—

Application and adaptation of enactments.

- (a) any reference therein to that Act included a reference to this Act;
- (b) any reference to the register required for any election in a constituency included a reference to the supplementary register;

- (c) any reference to national registration regulations included a reference to jurors books regulations; and
 - (d) any reference to an electors list included a reference to a supplementary register.
- (2) In the following provisions of the Act of 1943 references to that Act shall be construed as including references to this Act, that is to say—
- (a) subsection (1) of section two (which provides for construing for the purposes of that Act references to the initiation of an election);
 - (b) section sixteen (which relates to the right of a person registered under that Act to vote);
 - (c) subsection (1) of section twenty-one (which, in relation to registration under that Act and to voting where the register is prepared under that Act, excludes the application of Parts I and II of the Act of 1918).
- (3) Part II of the Fourth Schedule to the Act of 1945 (which provides for adapting certain enactments to that Act) shall have effect subject to the following modifications, that is to say—
- (a) in paragraph 1, any reference to the Act of 1945 shall be construed as including a reference to this Act;
 - (b) in paragraph 3, any reference to Part III of that Act shall be construed as including a reference to this Act; and
 - (c) in paragraph 4, any reference to the registration of electors under Part III of that Act shall be construed as including a reference to the registration of electors under this Act, and to the preparation of jurors books under this Act.

Transitional
provisions.
2 & 3 Geo. 6.
c. 91.

16. On the expiration of the National Registration Act, 1939, the transitional provisions contained in the Third Schedule to this Act shall have effect in lieu of the provisions of the Third Schedule to the Act of 1945.

Financial
provisions.

17.—(1) Section fifteen of the Act of 1918 (which relates to the expenses and receipts of registration officers and provides that the expenses of registration officers shall be paid by the local authority and reimbursed as to one half out of moneys provided by Parliament) shall have effect for the purposes of this Act as if the duties of registration officers under this Act, including their duties with respect to jurors books, were duties in relation to registration imposed by that Act, and as if any appeal under this Act were an appeal under that Act.

(2) There shall be paid to the proper officer of the council of a county borough or county district any expenses properly incurred by him in the performance of the functions of registration officers under this Act, including reasonable charges for his own trouble, care and attention in the performance of those functions, and for the remuneration and expenses of any staff provided by the council; and any expenses so incurred by the proper officer shall for the purposes of this section be treated as having been incurred by the registration officer at whose request the functions were performed, and as having been incurred by that registration officer in the performance of his duties under this Act.

18.—(1) Section twenty of the Act of 1943 (which requires electoral registration regulations to be approved by Parliament before coming into force) shall apply to electoral registration regulations made under this Act as it applies to electoral registration regulations made under that Act. Approval of regulations by Parliament.

(2) All jurors books regulations shall be laid before Parliament as soon as may be after they are made, and if either House of Parliament, within the period of forty days beginning with the day on which any such regulations are laid before it, resolves that the regulations be annulled, the regulations shall cease to have effect, but without prejudice to anything previously done thereunder or to the making of new regulations.

In reckoning any such period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

(3) Section one of the Rules Publication Act, 1893, shall not apply to jurors books regulations. 56 & 57 Vict.
c. 66.

19. The provisions of this Act relating to the registration of electors shall not have effect in relation to the registration of electors for university constituencies, and the provisions of this Act relating to voting by post and by proxy, except those provisions which relate to the application of Part IV of the Act of 1945, shall not have effect in relation to elections for such constituencies. Saving for university elections.

20.—(1) For the purposes of this Act, two addresses shall be deemed to be within the same area if they satisfy one of the following conditions, but not otherwise, that is to say— Addresses within the same area.

- (a) they are both within the combined area of two contiguous metropolitan boroughs;
- (b) they are both within the area of the same county borough;
- (c) they are both within the area of the same non-county borough;

(d) they are both within the area of the same urban district; or

(e) they are both within the area of the same rural parish.

(2) The provisions of this section shall have effect in relation to an address within the area of the City of London, or of any metropolitan borough contiguous thereto, as if the City were a metropolitan borough.

**Interpreta-
tion.**

21.—(1) In this Act, except where the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

7 & 8 Geo. 5.
c. 64.

“ the Act of 1918 ” means the Representation of the People Act, 1918;

6 & 7 Geo. 6.
c. 48.

“ the Act of 1943 ” means the Parliamentary Electors (War-time Registration) Act, 1943;

7 & 8 Geo. 6.
c. 24.

“ the Act of 1944 ” means the Parliamentary Electors (War-time Registration) Act, 1944;

8 & 9 Geo. 6.
c. 5.

“ the Act of 1945 ” means the Representation of the People Act, 1945;

“ constituency ”, “ general election ” and “ university constituency ” have the same meanings respectively as in the Act of 1918;

“ electoral registration regulations ” means regulations made by the Secretary of State under the Act of 1943, or the Act of 1945, or this Act, and “ national registration regulations ” has the same meaning as in the Act of 1943;

“ local government electoral area ” and “ local government election ” mean respectively any area which is a local government electoral area for the purposes of the Act of 1918, and a local government election within the meaning of that Act; and the expression “ local government elector ” shall be construed accordingly;

“ member of the forces ” and “ seaman ” have the meanings respectively assigned to them by section twenty-two of the Act of 1943;

“ prescribed ” means prescribed by electoral registration regulations or by jurors books regulations, as the case may require;

“ service declaration ” has the same meaning as in the Act of 1943;

“ war worker’s declaration ” means a declaration which is a war worker’s declaration for the purposes of any electoral registration regulations for the time being in force.

(2) For the purposes of section one of this Act, the annual register published on the fifteenth day of October in any year shall be deemed to have been published at midnight on the previous day.

(3) References in this Act to any enactment shall be construed as references to that enactment as amended by or under any subsequent enactment, including this Act.

22.—(1) The provisions of this Act relating to the preparation of jurors books shall not extend to Scotland. Application
to Scotland.

(2) In the application to Scotland of this Act or of the Act of 1945 any reference to section fifteen of the Act of 1918 shall be construed as a reference to the said section fifteen as read with section forty-three of the Act of 1918.

(3) This Act shall, in its application to Scotland, have effect as if in subsection (1) of section twenty, for paragraphs (a) to (e) there were substituted the following paragraphs—

“ (a) they are both within the area of the same electoral division of a county; or

(b) they are both within the area of the same burgh.”

23.—(1) The provisions of this Act relating to the preparation of jurors books shall not extend to Northern Ireland. Application
to Northern
Ireland.

(2) Subject to the following provisions of this section, any reference in this Act to an enactment of the Parliament of the United Kingdom shall, in the application of this Act to Northern Ireland, be construed as a reference to that enactment as it applies in Northern Ireland.

(3) Nothing in this Act shall apply in respect of the election of members to serve in the Parliament of Northern Ireland or of members of any local authority in Northern Ireland.

(4) In the application of this Act to Northern Ireland, the provisions of section seventeen shall not have effect.

(5) Any expenses properly incurred by registration officers in Northern Ireland in performing their functions under this Act shall be defrayed out of moneys provided by Parliament, and subsection (2) of section fifteen of the Act of 1918 (which authorises the Treasury to frame a scale of registration expenses) shall have effect as if any such expenses were registration expenses as defined for the purposes of that section:

Provided that the expenses to be paid under this subsection shall not include any charges for a registration officer's own trouble, care and attention in the performance of his functions.

61 & 62 Vict.
c. 37.

For the purposes of this subsection, the expense of any printing required in connection with the performance of the functions of a registration officer under this Act shall be treated as part of the expenses properly incurred by the officer in performing his functions under this Act, notwithstanding that arrangements for the printing are made by the county council under section ninety-six of the Local Government (Ireland) Act, 1898.

(6) In the application of this Act to Northern Ireland, for paragraph (e) of subsection (1) of section twenty, there shall be substituted the following paragraph:—

“(e) they are both within the area of the same rural district”.

(7) Nothing in this Act shall affect the determination of any question as to the council whose duty it is, under subsection (1) of section thirty-one of the Act of 1918, to divide a constituency in Northern Ireland into polling districts, and to appoint polling places for the polling districts; and any such question shall be determined as if the provisions of that Act relating to registration were not suspended.

Repeal of
enactments.

24. The enactments specified in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Short title
and citation.

25. This Act may be cited as the Elections and Jurors Act, 1945, and shall be included among the Acts which may be cited as the Representation of the People Acts.

SCHEDULES.**FIRST SCHEDULE.**

Section 1.

ENACTMENTS CEASING TO HAVE EFFECT UNDER SECTION ONE OF THIS ACT.

Session and Chapter.	Short Title.	Extent to which enactment shall cease to have effect.
6 & 7 Geo. 6. c. 48	The Parliamentary Electors (War-Time Registration) Act, 1943.	Subsection (5) of section one. Subsection (2) of section two. Section three. Section four. Section twelve. Section seventeen.
8 & 9 Geo. 6. c. 5	The Representation of the People Act, 1945.	In sub-paragraph (iii) of paragraph (b) of subsection (1) of section thirteen, the words "or during the period beginning with the tenth day of September and ending with the thirty-first day of December in any subsequent year". Sub-paragraph (iv) of paragraph (b) of subsection (1) of section thirteen. Section sixteen. Section seventeen. Section twenty-two.

SECOND SCHEDULE.

Section 6.

MODIFICATIONS OF SECTION TWENTY-THREE OF ACT OF 1918.

1. Subsection (4), except so much thereof as provides that a ballot paper for the purpose of voting by post shall not be sent to any person unless the address of that person recorded by the registration officer is an address in the United Kingdom, shall not have effect, and in lieu thereof the following provisions shall have effect:—

- (a) where a person is entitled under this Act to be placed on the absent voters list for elections for which a particular civilian residence register or supplementary register will be used, he shall, if he has satisfied the registration officer, on an application for the issue of a proxy paper made in accordance with electoral registration regulations, that there is a probability that he will be at sea or out of the United Kingdom during any period during which the poll at such an election may take place, be entitled to appoint a proxy to vote for him at such an election;

2ND SCH.
—cont.

- (b) no ballot paper shall be sent for the purpose of voting by post to a person who has appointed a proxy by virtue of this paragraph while the appointment is in force ;
- (c) the provisions of the Second Schedule to the Act of 1943 shall have effect in relation to the appointment and voting of proxies under this paragraph ;
- (d) subject to the provisions of paragraph 3 of the said Second Schedule, a proxy paper issued under this paragraph shall remain in force for the purposes of every election for which the civilian residence register or supplementary register in question is used.

2. The power of prescribing forms and making regulations under subsection (6) shall be exercised by electoral registration regulations instead of by Order in Council.

Section 16.

THIRD SCHEDULE.

TRANSITIONAL PROVISIONS ON EXPIRATION OF NATIONAL REGISTRATION ACT, 1939.

1.—(1) The provisions of this paragraph shall have effect if the National Registration Act, 1939 (hereafter in this Schedule referred to as “ the Act of 1939 ”) expires between the end of March in any year and the date which would have been the qualifying date for the general register which would have been prepared in that year if the Act of 1939 had remained in force throughout the year.

(2) Civilian residence and service registers shall be prepared for each constituency in accordance with the Act of 1943, and the qualifying date by reference to which they shall be prepared shall be the last day upon which the Act of 1939 was in force.

(3) The said registers shall be published upon such date, and shall come into force at such time, as may be prescribed by electoral registration regulations, and shall, as from that time, be substituted respectively for the civilian residence and service registers comprised in the annual register last published.

(4) A business premises register and a ratepayers register shall be prepared and published in the said year as if the Act of 1939 had not expired, and shall, as from the beginning of the fifteenth day of October in that year, be substituted respectively for the business premises register and the ratepayers register comprised in the annual register last published.

2. Until the expiration of the Act of 1943, any national registration regulations made by virtue of the Act of 1943 or of the Act of 1945 shall continue in force, and may be varied or revoked, as if the Act of 1939 had not expired.

FOURTH SCHEDULE.

Section 24.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
7 & 8 Geo. 5. c. 64	The Representation of the People Act, 1918.	The Seventh Schedule.
6 & 7 Geo. 6. c. 48	The Parliamentary Electors (War-Time Registration) Act, 1943.	Subsection (5) of section one. Subsection (2) of section two. Section three. Section four. Section twelve. Section seventeen. Subsections (4) and (5) of section nineteen.
8 & 9 Geo. 6. c. 5	The Representation of the People Act, 1945.	In sub-paragraph (iii) of paragraph (b) of subsection (1) of section thirteen, the words "or during the period beginning with the tenth day of September and ending with the thirty-first day of December in any subsequent year". Sub-paragraph (iv) of paragraph (b) of subsection (1) of section thirteen. Section sixteen. Section seventeen. Section twenty-two. Subsection (3) of section twenty-three. Subsection (1) of section thirty-two. Paragraph (b) of subsection (5) of section thirty-five. The Third Schedule.